

- No Proof of Service was filed indicating that Defendant was served. Service of the Petition on all parties is necessary.

Due to the extensive issues with the Petition, Petitioner will need to file an Amended Petition that includes all necessary evidence. Time is of the essence as the settlement cannot fund and the minor will not have the ability to receive interest on the settlement until funded. **An appearance by counsel for Petitioner is necessary on today's calendar. Failing to appear will result in the issuance of an Order to Show Cause Re: Monetary Sanctions.**

CONNEXUS CREDIT UNION VS. GEOUGE, ET AL.

CASE NUMBER: 25CVG-01931

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause issued on June 24, 2026 to Plaintiff Connexus Credit Union. and Counsel IDEA Law Group, P.C. for failure to timely obtain a default judgment and failure to timely prosecute. Default was entered against Defendant Jonathan Lynn Geouge on July 1, 2026, however, nothing has been filed as to Defendant Cody Jason Murphy-Mummy. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, November 2, 2026 at 9:00 a.m. in Department 63** for status of service on Defendant Cody Jason Murphy-Mummy. If the matter is not at issue by the next hearing, the Court intends to issue an Order to Show Cause Re: Sanctions.

DOE VS. SCHENK, MFC, RAS

CASE NUMBER: 26CV-0210220

Tentative Ruling on Demurrer: Defendant, Daniel Schenk, demurs to the Second Cause of Action for Intentional Infliction of Emotional Distress, the Fourth Cause of Action for Negligence, and the Fifth Cause of Action for Fraud and Deceit alleged in the Complaint filed by Plaintiff on March 25, 2026, on the grounds that the Complaint fails to state facts sufficient to constitute a cause of action. Plaintiff opposes the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Bryan Malone provides evidence of sufficient meet and confer efforts.

Request for Judicial Notice. Defendant requests the Court take judicial notice of the Complaint filed on March 25, 2026, and of the fact that Defendant is a licensed marriage and family therapist with the California Board of Behavioral Sciences. The request is granted pursuant to Evid. Code §§ 452.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer should also be sustained if the pleading is uncertain, meaning that the pleading is ambiguous or unintelligible. CCP § 430.10(f). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Second Cause of Action. Defendant demurs to the cause of action for intentional infliction of emotional distress on the grounds that the Complaint fails to allege facts that Defendant’s conduct was so extreme and outrageous as to warrant a claim. “The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of